

**SENATE SUBSTITUTE FOR
HOUSE BILL NO. 4678**

A bill to amend 1964 PA 283, entitled
"Weights and measures act,"
(MCL 290.601 to 290.635) by adding section 28g.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 **Sec. 28g. (1) The sale of motor fuel by a qualified equipment**
2 **renter to a person that rents qualified rental equipment at a**
3 **qualified equipment rental location for the purpose of filling or**
4 **refilling a motor fuel storage tank that is part of the qualified**
5 **rental equipment may be conducted by 1 of the following methods:**

6 **(a) A flat rate or surcharge amount stated clearly in a rental**
7 **contract.**

8 **(b) A per-gallon fee amount stated clearly in a rental**
9 **contract with the amount of the motor fuel sold measured by a**



1 qualified dispenser.

2 (2) The motor fuel sold by a qualified equipment renter must
3 meet the national ambient air quality standards established by the
4 United States Environmental Protection Agency. A qualified
5 dispenser must be used in compliance with any applicable
6 regulations of the United States Department of Labor, Occupational
7 Safety and Health Administration and the United States Department
8 of Labor.

9 (3) A qualified equipment renter shall calibrate any device
10 used to dispense the motor fuel at the qualified equipment rental
11 location at least once every 3 years. A qualified equipment renter
12 shall maintain records of each calibration conducted under this
13 subsection for not less than 3 years.

14 (4) A qualified equipment renter shall not require a person
15 that rents qualified rental equipment at a qualified equipment
16 rental location to purchase motor fuel from the qualified equipment
17 renter.

18 (5) As used in this section:

19 (a) "Gallon" means that term as defined in section 3 of the
20 motor fuel tax act, 2000 PA 403, MCL 207.1003.

21 (b) "Motor fuel" means that term as defined in section 4 of
22 the motor fuel tax act, 2000 PA 403, MCL 207.1004.

23 (c) "Qualified dispenser" means a container for the storage
24 and transfer of motor fuel of 110 gallons or less that is
25 constructed from materials compatible with the type of motor fuel
26 stored in the container, that complies with any applicable
27 standards of the United States Department of Transportation, and
28 that includes all of the following components:

29 (i) A dispensing hose and nozzle.



1 (ii) A venting system.

2 (iii) A gauge for measuring the amount of fuel in the container
3 with a level of precision of not less than 1/8 of an inch.

4 (iv) A volumetric flow meter that satisfies all of the
5 following requirements:

6 (A) Is installed in compliance with the requirements of the
7 manufacturer of the volumetric flow meter.

8 (B) Is capable of displaying the amount of motor fuel
9 dispensed to the nearest 0.1 gallon or less.

10 (C) Is certified by the manufacturer of the volumetric flow
11 meter to have an accuracy of plus or minus 1.0% or less.

12 (d) "Qualified equipment rental location" means a physical
13 location of a qualified equipment renter in this state with a tax
14 parcel identification number under the general property tax act,
15 1893 PA 206, MCL 211.1 to 211.155, that sells less than 3,000
16 gallons of motor fuel to persons renting qualified rental equipment
17 from the qualified equipment rental location in a calendar year.

18 (e) "Qualified equipment renter" means a person that satisfies
19 both of the following:

20 (i) Is engaged in this state in a line of business described in
21 Code 532310 or 532412 of the North American Industry Classification
22 System published by the United States Census Bureau, 2022 edition.

23 (ii) Receives more than 25% of its annual gross receipts from
24 the rental of qualified equipment to the public.

25 (f) "Qualified rental equipment" means equipment that is
26 powered by motor fuel, is mobile, and is rented to customers by a
27 qualified renter. For purposes of this subdivision, equipment is
28 mobile if the equipment is not intended to be permanently affixed
29 to real property for its intended use and can be moved to different



1 locations. Qualified rental equipment includes, but is not limited
2 to, any of the following:

3 (i) A self-propelled vehicle that is not designed to be driven
4 on the highway.

5 (ii) Electrical generation equipment.

6 (iii) Lifting equipment.

7 (iv) Material handling equipment.

8 (v) Portable heating, ventilation, and air conditioning
9 equipment.

10 (vi) Industrial compressors, generators, or pumps.

11 (vii) Equipment used in shoring, shielding, and ground
12 trenching.

13 (viii) Equipment or vehicles not subject to titling under the
14 Michigan vehicle code, 1949 PA 300, MCL 257.1 to 257.923.

15 (g) "Rent" or "rental" means entering into an agreement for
16 the use of property in exchange for consideration for a term of
17 less than 365 consecutive days, or under an open-ended contract.

18 Enacting section 1. This amendatory act does not take effect
19 unless House Bill No. 4679 of the 103rd Legislature is enacted into
20 law.